To Solve a Cold Case, French Police Bent DNA Privacy Law

Podcast: Wall street journal

AI Executive Summary

AI Summary failed to generate. Ensure Ollama is running and has sufficient memory.

Full Transcript

A quick heads up before we get started. This episode discusses violent crimes, including sexual assault. Please listen with care. The long saga of one of France's most notorious cold cases began in 1998 when a man who came to be known as the predator of the woods attacked a teenage girl. This happens in the port city of La Rochelle in western France. Our colleague Matthew Dalton is a Paris correspondent for The Journal. A 16-year-old teenager is walking home from school when she is approached by a man in a car who, by different accounts, either lures her into the car or forces her into his car, brandishes a knife, takes her to a wooded area outside the city and rapes her, leaves her alive but very traumatized and leaps.

Police didn't have much to go on except a description of the attacker. Tall, gaunt, with light-colored eyes. Maybe blue or green. They distributed the police sketch. That was their main way of trying to find the person because they didn't really have many other leads. Over the course of the next decade, the man continued to terrorize France. He is believed to have raped at least four other young women and teenagers through 2008. In each case, the police did collect DNA. It all belonged to the same person. They plugged it into their, the French law enforcement database, and there were no matches. But that database was pretty limited. It only included DNA from people who had been previously arrested for serious crimes. With no real leads, The cases went unsolved for decades. I would say, you know, amongst cold cases in France, it was one of the most perplexing and one of the most well-known. Then, nearly 15 years later, the French police decided to do something they've never done before — go around long-standing privacy laws to crack the case. Welcome to The Journal, our show about money, business, and power. I'm Jessica Mendoza. It's Wednesday, August 12th.

Coming up on the show, how DNA crime solving is putting Europe's privacy norms to the test. In the last decade in the United States, a new way of solving crimes, especially cold cases, has revolutionized law enforcement, genetic genealogy. It's been made possible by the explosion

and popularity of recreational DNA testing. Recreational DNA testing has become a very big business, particularly in the United States.

Ancestry.com, Maya Ancestry, 23andMe, 23andMe. All of those companies, you can take a swab of your DNA, you send it in, they give you your DNA results, and then they will find distant relatives of yours or maybe close relatives of yours who have already submitted their DNA. Tens of millions of Americans have voluntarily submitted their DNA to these databases. For many of those people, the goal is to learn about their genetic heritage and piece together family trees. Adopted people have found biological family, and sometimes long-hidden family secrets were revealed. But law enforcement saw those huge databases of DNA information and realized they had another possible use, something most people hadn't intended their DNA to be used for, solving crimes. In cases where law enforcement has DNA evidence but no suspect, What if they submitted that DNA to one of these databases? Could they find a distant relative of the suspect? And if so, could they work their way from there to the person who left their DNA at a crime scene? In California, police tried this approach for one of the most notorious unsolved crime sprees in American history. The elusive Golden State Killer. Under arrest for a violent crime spree that terrorized California for more than 40 years.

The Golden State Killer was thought to be responsible for 13 murders and more than 50 rapes across California in the 70s and 80s. They had been looking for this guy for a long time and law enforcement decided, well, we have a DNA sample from this person. We don't know who it is. What if we, like we're looking for the unknown parents of somebody who's been adopted, but instead, we're looking for an unknown serial killer? And so that's what they did. They took his DNA. They sent it into databases that allow people to find relatives. It worked. Law enforcement found a number of people who were distant relatives of the Golden State Killer. From there, they researched and used documents to build out a family tree. And eventually, police narrowed it down to a single suspect.

A big break in a decades-old serial killer case out in California, police say they've now arrested the man known as the Golden State Killer. And so they, after a lot of work, found who the Golden State Killer was in 2018. He

was a retired police officer named Joseph DiAngelo. Despite the decades of police work and research, DiAngelo's name had never come up in the investigation. But thanks to genetic genealogy, the Golden State Killer case was solved roughly 50 years after his crime spree began. D'Angelo later pleaded guilty and was sentenced to life in prison without parole. That showed that the technique could work. I mean, it sounds like a pretty big breakthrough for solving cold cases given that the trail had been cold for years and years until this came up. Yeah, it's absolutely revolutionary.

going forward when law enforcement have an unidentified DNA sample. I mean, the odds are that you're going to be able to find this person. and they've been able to solve a number of other well-known cold cases. A major update in a chilling cold case known as the barebrook murders. Coming more and more common authorities solving decades-old mysteries with the use of genetic genealogy. Estimated more than 150 violent cold case suspects have been identified using the same genealogy DNA technique. But using DNA and genealogy to crack cold cases is a pretty uniquely American technique. These databases are restricted in many European countries, including France. So recreational DNA testing is actually illegal in France. You cannot test your DNA just like that, like we can in the United States. There needs to be a court order that has to be done by a company that's accredited by the French judicial authorities and the French law. Europe has very strict data privacy laws. When you send your Data and particularly DNA data, which is considered to be almost sacrosanct under European law The databases have they can't transfer the data to anybody else They can't sell it. They can't share it and they have to when you ask for this they have to delete it Matt says it comes down to cultural differences around privacy in general Europeans have a much greater expectation of privacy and a greater expectation of legal protections for their data than Americans do. I do find this quite often that Europeans are much less open to being interviewed, to being named in articles. Americans are much less camera shy in a way. And I think that attitude extends all throughout.

society actually to the use of their DNA. But you can start getting worried about these things. The more you think about them, the more you wonder how companies could be using big DNA databases to, for example, to

profile people for biological or genetic risks. You know, insurance companies would love to have access to this data to make risk profile of the people they insure. When police use these databases to solve crimes, they can access people's DNA without consent. and without a warrant. All it takes is a relative of yours to submit their DNA for you to become potentially findable through one of these databases. Many of the US-based DNA testing companies now let customers opt out of giving law enforcement access to their DNA. But the problem is, Matt says, police can and do just ignore that restriction. There's nothing stopping law enforcement from pretending not to be law enforcement and getting access to a broader array of searchable profiles of people who have said they don't want to be included in law enforcement searches, and thereby increasing the chances of solving a crime. Meanwhile, the predator of the Woods case still loomed large in France. It had been nearly two decades, and other police units had not had success in finding this person. They really had no leads after such a long time period. And as any Cold Case Investigator will tell you the more time goes by the harder it gets. In 2018, a new specialized police unit was tasked with taking another look. And so there's a unit of the French National Police called the OCRVP. And this is a kind of typical of French bureaucracy that are obsessed with clunky acronyms. But this particular unit of the French police. It's an acronym that kind of roughly translates to the Central Office for the Repression of Violence Against People. And they have a mandate to investigate kind of really difficult crimes. You know, they read the case files very closely. They again distributed the police sketch. And they had this DNA sample of the suspect of the predator of the woods.

They put out a new call for public help, and when you do that, you often get swamped with tips. So then they saw the Golden State Killer case. They heard about what the FBI was doing. The French investigator's idea was to send their suspect's DNA to the United States. And the FBI would run the test through the American database, which would stretch and maybe break French privacy laws. You can't just send these tests. overseas to whoever you want. So that created this really sort of strange tension, which is that they were going to be relying on possibly the test of a French person who had broken French law and sent in their DNA to one of these databases. And even if French police did find a relative of the suspect in the US

databases, it wasn't clear they'd be able to use it as evidence in a case against him. This is a technique that is not specifically authorized by French law. So relying on information and data collected from some database overseas, would they be able to secure a conviction using that? Right. You solved the case, but the evidence doesn't hold up in court. Doesn't really help you. Exactly. So they had to think very carefully about that. But what they were facing is at this point they had really no alternative. They had exhausted every other possibility. They were at their wit's end. This offered the possibility to crack the case wide open. And in my piece, I quote one of the lawyers who represented a victim in the case. And he made the point that society will not accept that the technological means exist to solve one of the crimes, but that people don't do it. They had to take the risk. The French investigators decided to test the legal boundaries.

and reached out to their American counterparts. They called up the FBI and said, you know, we see that you guys have this new technique. Is it true? Can you help us? And the FBI said, yeah, we can help you. We're going to work with you. That's next. So French authorities, French law enforcement decide to send a sample to the FBI, despite, you know, the questionable legality. Europe's got these intense data privacy laws. Had this ever been done over there before? Using these commercial databases in this way, at that point, had been done once before that we're aware of in Sweden. And the Swedish police did that, and they cracked a cold case. At the time, Sweden barred police from accessing DNA databases. But that didn't stop them from using DNA testing and genetic genealogy to solve a 16-year-old double murder case in 2020. What was the response to that across Europe?

Well, it's interesting. After they solved this case, the Swedish data privacy authority put a stop to using the technique. They said that Swedish law didn't authorize it, so the Swedish authority stopped using it for a number of years. And it was only last year that the Swedish legislature put a legal framework around the use of this technique, and then they started using it again, only for the most serious crimes, only in cases of absolute necessity when other avenues have been exhausted. French law enforcement hoped a breakthrough in the predator of the woods case might prove that pushing the legal boundaries of privacy law could be worth it. They waited for the FBI to run the DNA sample.

And they kind of cross their fingers and hope they get something back. And about six months later or so, they get a response. There is a hit. He's a genealogy enthusiast and professional archivist who lives in Brittany. A man named Mathieu Beauvais, who lived in Northern France, had illegally sent his DNA to a recreational database in the US. And it turns out he was distantly related to the predator of the woods. Having a... professional archivist as your match is kind of a police officer's dream. Because this guy, Bouvet, had spent many years researching and building an extensive family tree. And he posted it online. First, of course, the French police are elated. And then they kind of looked at the size of the family and what they were, how many people were involved. They realized how much work this was going to be.

There were 6,000 people in the family tree Bouvet had assembled. Bouvet's ancestors were part of big French families. You know, some of them had 11 children and then each child had, you know, maybe seven or eight children. It was overwhelming, but police knew that somewhere in that family tree was the person they'd been searching for for more than 20 years. Then... The FBI came back a few months later and said, we found another match. There's Guy living in Eastern France. And the FBI said to the French, give us as much information about his family tree as you can get. And the FBI then came back to them a few months after that and said, okay, we have found this sort of junction in the family tree between Mathieu Bouvet in Brittany and this guy in Eastern France.

The predator of the woods was related to both of these DNA matches and the FBI found the place where the two family trees intersected a married couple a man born in 1901 and a woman born in 1902 The FBI came back and said you need to look at all of the descendants of this couple Wow, so the French started zeroing in they kind of worked their way down. And as they got to the generation of people who were likely to be alive, still at this time, they began to look for men of the right age who would now be in their 50s or 60s, tall, thin, light colored eyes, blue or green. The profile of the sketches basically. Exactly. In the span of only months, hundreds of potential suspects had been whittled down to just three.

three men who fit the profile. And they pull up the identity cards of these men. They see one who they think kind of bears a striking resemblance. Then they look into him a little bit. And they see that he had a conviction for sexual assault against a girl he picked up hitchhiking that had been expunged from his record in the 1980s. French police raided the man's house, detained him, and took a DNA sample. They then confirmed that the one that they thought was most probable was indeed the suspect. His name was Bruno Lambrich-Gonzalvo. Lambrich-Gonzalvo was 62 at the time of the arrest. He was actually a candidate on one of the election lists for his town, which was Quotri, kind of northeast suburb of Paris. He was not hiding.

I think he thought he would never be caught. And without this technique, I don't think he would have ever been caught. The predator of the woods case had finally been solved. He was arrested in December of 2022. And when he was interviewed by the judge, he said, I was wondering if and when I would be found. I thought often about all the wrong that I've done. He was supposed to go on trial, but in March 2024, he committed suicide in his prison cell in a prison outside Paris. So to finally make this arrest, French police had to basically violate privacy laws. Is it possible that, like, if this man had gone to trial, that would have been a problem for the prosecution? It's probably something that his lawyer would have certainly challenged in court. But...

Given that the guy had already confessed, it would have been unlikely that the case against him would have been dismissed. But it could have been something for a defendant who was more determined to fight the charges. It could have damaged the ability of French police to use this technique in the future. Earlier this year, French lawmakers passed a measure that would have allowed police to do what they did with the predator of the woods in other cases. Like Sweden's law, it was supposed to only be used to help solve the most serious crimes. But last month, France's constitutional court struck it down, saying it didn't go far enough to protect people's DNA privacy. And this tension is playing out in other European countries as well. Police in Germany and the UK are also barred from using DNA databases. But London's Metropolitan Police is currently running a pilot program to explore the use of genetic genealogy.

This is going to be an interesting subject for other European countries as they deal with these cases. So the Predator of the Woods case was, as you put it, one of the most perplexing cold cases in France. And police finally solved it with this technique. But it sounds like the courts say, you know, they're not really allowed to use it. So what does that mean for cold cases in France? The response was from a lot of other victims of unsolved crimes who want this technique very much to be used in their cases. So the French justice system has kind of been beluged with requests. I mean, one example is there's a case that's known as the violeur d'antib, which is a rapist who was operating a number of years ago on the French Riviera in Antibes and has never been caught. And so the victims of this guy mobilized to make public their demands that this should happen because they felt that the French justice system was taking way too long to do this. So there's a coalition of victims of crime in France that have been really active and want this technique to be used in a very aggressive way. That's all for today, Wednesday, August 12th. The Journal is a co-production of Spotify and the Wall Street Journal. If you like our show, follow us on Spotify or wherever you get your podcasts.

We're out every weekday afternoon. Thanks for listening. See you tomorrow.